

Court No. - 29

Case :- WRIT - C No. - 22440 of 2019

Petitioner :- Snehlata

Respondent :- U P Power Corporation Limited And 2 Others

Counsel for Petitioner :- Ved Prakash Shukla

Counsel for Respondent :- Baleshwar Chaturvedi, Amit Krishna

Hon'ble Pankaj Mithal, J.

Hon'ble Saral Srivastava, J.

Sri Ved Prakash Shukla, learned counsel for the petitioner and Sri Baleshwar Chaturvedi, learned counsel for respondent Nos. 2 and 3.

The petitioner is having an electricity connection for the purposes of running a tube-well. In respect of the said connection, he received a bill for the month of July, 2018. The petitioner disputed the correctness of the said bill. It was corrected under the orders of the Executive Engineer. Thereafter petitioner received a bill for the month of October, 2018. This was also disputed by the petitioner and it was again corrected by Executive Engineer.

The petitioner despite the bills being corrected failed to deposit the amount as per the corrected bills.

Now, the petitioner has been furnished with a electricity bill for the month of May, 2019 including the arrears. The petitioner is disputing the correctness of the said bill also on the ground that though in the bill the connection number is rightly mentioned but the meter number is wrong and such whole of the bill is incorrect.

The correctness of the electricity bill can always be checked by the Executive Engineer as provided under Clause 6.5 of the U.P. Electricity Supply Code, 2005. Therefore, if petitioner is aggrieved by the bill of May, 2019, he may raise a dispute in that regard before the Executive Engineer who will consider it and rectify the same if necessary.

The petitioner, if not satisfied by the order of the Executive Engineer or the bill as corrected by him may prefer a complaint before the Consumer Grievance Redressal Forum and Ombudsman in accordance with Clause 7.10 of the U.P. Electricity Supply Code, 2005.

In view of the aforesaid alternative remedies available to the petitioner, the writ petition is **dismissed** on the ground of alternative remedy.

Order Date :- 16.7.2019

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